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EXAMINER	
MARCHEWKA, MATTHEW R	

ART UNIT	PAPER NUMBER
3732	

NOTIFICATION DATE	DELIVERY MODE
06/27/2025	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 18/049,014	Applicant(s) Chang et al.	
	Examiner MATTHEW R MARCHEWKA	Art Unit 3732	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 19 May 2025.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-20 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-20 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☐ The drawing(s) filed on _____ is/are: a)☐ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Continued Examination Under 37 CFR 1.114

2. A request for continued examination under 37 CFR 1.114, including the fee set forth in 37 CFR 1.17(e), was filed in this application after final rejection. Since this application is eligible for continued examination under 37 CFR 1.114, and the fee set forth in 37 CFR 1.17(e) has been timely paid, the finality of the previous Office action has been withdrawn pursuant to 37 CFR 1.114. Applicant's submission filed on May 19, 2025 has been entered.

Status of the Claims

3. As directed by the amendment received on May 19, 2025, claims 1, 6, 11, and 16 have been amended. Accordingly, claims 1-20 are currently pending in this application.

Response to Amendment

4. The amendments filed with the written response received on May 19, 2025, have been considered and an action on the merits follows. Any objections and rejections previously put forth in the Office Action dated February 19, 2025, are hereby withdrawn unless specifically noted below.

Claim Objections

5. **Claim 11** is objected to because of the following informalities:

- At line 11, “in one of the sockets” should read “in a first socket of the pair of sockets”

- At line 13, "in the other of the sockets" should read "in a second socket of the pair of sockets"

Appropriate correction is required.

Claim Rejections - 35 USC § 103

6. In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis (i.e., changing from AIA to pre-AIA) for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

7. The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

8. This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

9. **Claims 1-20 are rejected under 35 U.S.C. 103 as being unpatentable over US 2018/0213886 to Connell et al. (hereinafter, "Connell").**

Regarding **claim 1**, Connell teaches *a sole structure for an article of footwear* (See Connell, Figs. 54-57B; sole structure (14k)), *the sole structure comprising: a first compressible midsole layer extending from an anterior end of the sole structure to a posterior end of the sole structure* (See Connell, Figs. 54-57B; first cushion (152k2, 154k2) extending between anterior and posterior ends of sole structure and made of compressible polymer foam; cushion segments are separated and interfaced by plate (270) formed of a semi-rigid or relatively rigid material having at least some compressibility; [0297]-[0298], [0306]), *the first compressible midsole layer including an upper side, a bottom side formed on an opposite side from the upper side* (See Connell, Figs. 55 and 57B; first cushion (152k2, 154k2) and plate (270) includes an upper foot-facing side and a bottom ground-facing side opposite from the upper side), *and a recess formed in the upper side* (See Connell, Figs. 55 and 57b; gap (156k) formed in upper surface of cushion between segments (152k2, 154k2), *the upper side including a first socket and a second socket each extending toward the bottom side* (See Connell, Fig. 55; upper side of plate (270) includes sockets (287) having cavities which extend from a top of the sockets down toward the bottom side; [0310]); *a first bladder disposed within the recess adjacent to a lateral side of the sole structure and within the first socket* (See Connell, Figs. 54-57A; chamber (194k) within recess adjacent lateral side of sole structure and within corresponding socket (287); [0310]); *and a second bladder disposed within the recess adjacent to a medial side of the sole structure and within the*

second socket (See Connell, Figs. 54-57A; chamber (190k) within recess adjacent medial side of sole structure and within corresponding socket (287); [0310]).

That said, the first compressible midsole layer of Connell is made of several segmented structures (i.e., 152k2, 154k2, 270), and although Connell teaches that these structures are attached to one another (See Connell, [0303]), Connell is silent as to how the structures are attached to one another and therefore is silent to a first compressible midsole layer that extends *continuously*.

However, Connell, in another embodiment, discloses a sole structure wherein a polymer foam midsole can be attached to a relatively rigid plate by molding the structures directly together to form a unitary structure having both the midsole and plate (See Connell, [0124], [0126]).

It would have been obvious for one of ordinary skill in the art at the time of the effective filing date of the invention to mold the plate and cushion segments of Connell directly together to form a unitary structure as disclosed by the other embodiment of Connell for a variety of reasons including for example, but not limited to, joining the components together by a known method that ensures strong adhesion between components. As a result of the modification, the modified sole structure of Connell teaches a first compressible midsole layer that extends *continuously* (i.e., a unitary structure) from an anterior end of the sole structure to a posterior end of the sole structure.

Regarding **claim 2**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 1 above) further teaches *wherein the recess extends across an entire width of the first compressible midsole layer from the medial side to the*

lateral side (See Connell, Figs. 54-55 and 57A; recess formed at gap (156k) extends across entire width of midsole layer from medial to lateral sides).

Regarding **claim 3**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 1 above) further teaches *wherein the recess is disposed in a forefoot region of the first compressible midsole layer* (See Connell, Figs. 54-55 and 57B; recess formed at gap (156k) is disposed in a forefoot region of midsole layer; Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 4**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 1 above) further teaches *wherein the recess extends from a first end surface adjacent to a toe portion of the sole structure to a second end surface disposed in one of a forefoot region or a mid-foot region of the sole structure* (See Connell, Figs. 55 and 57B; recess formed in gap (156k) extends from a sidewall (174k) adjacent a toe portion to a sidewall (176k) in a forefoot region of the sole structure; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com); Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 5**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 1 and 4 above) further teaches *wherein at least one of the first end surface or the second end surface is spaced apart from each of the first bladder and the second bladder* (See Connell, Fig. 57B; each chamber (190k, 194k) is spaced from each sidewall (174k, 176k)).

Regarding **claim 6**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 1 and 4 above) further teaches *wherein at least one of the first end surface and the second end surface is oriented at an oblique angle relative to a central axis of the first bladder, the central axis extending through a thickness of the first bladder measured between a top side and a bottom side of the first bladder* (See Connell Fig. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis extending through a thickness of either chamber (190k, 194k)).

Regarding **claim 7**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 1, 4, and 6 above) further teaches *wherein the first end surface is oriented at a first oblique angle relative to the central axis of the first bladder and the second end surface is oriented at a second oblique angle relative to the central axis* (See Connell Figs. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis of either chamber (190k, 194k)).

Regarding **claim 8**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 1 above) further teaches *a second compressible midsole layer extending from the anterior end to the posterior end* (See Connell, Figs. 54-57A; second cushion (152k$_1$, 154k1) extends from anterior end to posterior end of sole structure inasmuch as Applicant's second cushion does and is made of

compressible polymer foam; [0297]) *and having a top side and a lower side formed on an opposite side of the second compressible midsole layer than the top side, the lower side facing the upper side of the first compressible midsole layer* (See Connell, Figs. 55 and 57B; second cushion (152k1, 154k1) includes a top foot-facing side and a lower ground-facing side opposite from the top side and facing the upper side of the first cushion).

Regarding **claim 9**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 1 and 8 above) further teaches *a plate disposed adjacent to the lower side* (See Connell, Figs. 55 and 57B; plate (268)) *and including a first plate portion attached to the first compressible midsole layer in a toe portion* (See Connell, Fig. 55 and 57B; first end (272) of plate (268) attached between first and second cushions in a toe portion; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com)), *a second plate portion extending across the recess and attached to each of the first bladder and the second bladder* (See Connell, Figs. 55 and 57B; intermediate portion (276) of plate (268) extending across recess and attached to each chamber (190k, 194k)), *and a third plate portion attached to the first compressible midsole layer in a mid-foot region of the sole structure* (See Connell, Fig. 55 and 57B; second end (274) of plate (268) attached between first and second cushions in a mid-foot region of the sole structure).

Regarding **claim 10**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 1 above) further teaches *wherein the first bladder and*

the second bladder each include a tensile member (See Connell, Fig. 57A; chambers (190k, 194k) are each fluid-filled chambers having tensile elements therein; [0312]).

Regarding **claim 11**, Connell teaches *a sole structure for an article of footwear* (See Connell, Figs. 54-57B; sole structure (14k)), *the sole structure comprising: a compressible midsole layer extending from an anterior end of the sole structure to a posterior end of the sole structure* (See Connell, Figs. 54-57B; cushion (152k, 154k) extending between anterior and posterior ends of sole structure and made of compressible polymer foam; cushion segments are separated and interfaced by plate (270) formed of a semi-rigid or relatively rigid material having at least some compressibility; [0297]-[0298], [0306]) *the compressible midsole layer including: a top side including a first wall facing the posterior end, a second wall spaced from the first wall and facing the anterior end, and a support wall extending between the first wall and the second wall* (See Connell, Figs. 55 and 57B; cushion (152k, 154k) and plate (270) have a top foot-facing side which includes a first wall (174k) facing the posterior end, a second wall (176k) spaced from the first wall and facing the anterior end, and a support wall formed by the top surface of plate (270) which extends between walls (174k, 176k)), *the support wall including a pair of sockets* (See Connell, Fig. 55; top surface of plate (270) includes pair of sockets (287); [0310]), *a bottom side formed on an opposite side from the top side* (See Connell, Figs. 55 and 57B; cushion (152k, 154k) and plate (270) form a bottom ground-facing side opposite from the top side), *and a receptacle disposed between the first wall, the second wall, and the support wall* (See Connell, Figs. 55 and 57b; gap (156k) formed between sidewalls (174k, 176k) and top surface of plate (270)); *a first bladder disposed in one of the sockets within the receptacle adjacent*

to a lateral side of the sole structure (See Connell, Figs. 54-57A; chamber (194k) within recess adjacent lateral side of sole structure and within corresponding socket (287); [0310])*; and a second bladder disposed in the other of the sockets and within the receptacle adjacent to a medial side of the sole structure* (See Connell, Figs. 54-57A; chamber (190k) within recess adjacent medial side of sole structure and within corresponding socket (287); [0310]).

That said, the first compressible midsole layer of Connell is made of several segmented structures (i.e., 152k2, 154k2, 270), and although Connell teaches that these structures are attached to one another (See Connell, [0303]), Connell is silent as to how the structures are attached to one another and therefore is silent to a first compressible midsole layer and support wall that extends *continuously*.

However, Connell, in another embodiment, discloses a sole structure wherein a polymer foam midsole can be attached to a relatively rigid plate by molding the structures directly together to form a unitary structure having both the midsole and plate (See Connell, [0124], [0126]).

It would have been obvious for one of ordinary skill in the art at the time of the effective filing date of the invention to mold the plate and cushion segments of Connell directly together to form a unitary structure as disclosed by the other embodiment of Connell for a variety of reasons including for example, but not limited to, joining the components together by a known method that ensures strong adhesion between components. As a result of the modification, the modified sole structure of Connell teaches a first compressible midsole layer and support wall that each extend *continuously* (i.e., a unitary structure) between respective structures.

Regarding **claim 12**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 11 above) further teaches *wherein the receptacle extends across an entire width of the compressible midsole layer from the medial side to the lateral side* (See Connell, Figs. 54-55 and 57A; receptacle formed at gap (156k) extends across entire width of midsole layer from medial to lateral sides).

Regarding **claim 13**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 11 above) further teaches *wherein the receptacle is disposed in a forefoot region of the compressible midsole layer* (See Connell, Figs. 54-55 and 57B; receptacle formed at gap (156k) is disposed in a forefoot region of midsole layer; Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 14**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 11 above) further teaches *wherein the receptacle extends from a first end surface adjacent to a toe portion of the sole structure to a second end surface disposed in one of a forefoot region or a mid-foot region of the sole structure* (See Connell, Figs. 55 and 57B; receptacle formed in gap (156k) extends from a sidewall (174k) adjacent a toe portion to a sidewall (176k) in a forefoot region of the sole structure; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com); Examiner notes that the term "region" is very broad and

merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 15**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 11 and 14 above) further teaches *wherein at least one of the first end surface or the second end surface is spaced apart from each of the first bladder and the second bladder* (See Connell, Fig. 57B; each chamber (190k, 194k) is spaced from each sidewall (174k, 176k)).

Regarding **claim 16**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 11 and 14 above) further teaches *wherein at least one of the first end surface and the second end surface is oriented at an oblique angle relative to a central axis of the first bladder, the central axis extending through a thickness of the first bladder measured between a top side and a bottom side of the first bladder* (See Connell Fig. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis extending through a thickness of either chamber (190k, 194k)).

Regarding **claim 17**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claims 11, 14, and 16 above) further teaches *wherein the first end surface is oriented at a first oblique angle relative to the central axis of the first bladder and the second end surface is oriented at a second oblique angle relative to the central axis* (See Connell Figs. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis of either chamber (190k, 194k)).

Regarding **claim 18**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 11 above) further teaches *wherein the compressible*

midsole layer includes a first cushion including a recess (See Connell, Figs. 54-57B; first, lower cushion (152k$_2$, 154k$_2$) and plate (270) as modified above; gap (156k) formed in first cushion forms recess; [0303]) *and a second cushion covering the recess to define the receptacle* (See Connell, Figs. 55 and 57B; second, upper cushion (152k$_1$, 154k$_1$) at least partially covers recess formed by gap (156k) to define receptacle).

Regarding **claim 19**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 11 above) further teaches *a plate* (See Connell, Figs. 55 and 57B; plate (268)) *including a first plate portion attached to the compressible midsole layer in a toe portion* (See Connell, Fig. 55 and 57B; first end (272) of plate (268) attached between first and second cushions in a toe portion; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com)), *a second plate portion extending across the receptacle and attached to each of the first bladder and the second bladder* (See Connell, Figs. 55 and 57B; intermediate portion (276) of plate (268) extending across recess and attached to each chamber (190k, 194k)), *and a third plate portion attached to the compressible midsole layer in a mid-foot region of the sole structure* (See Connell, Fig. 55 and 57B; second end (274) of plate (268) attached between first and second cushions in a mid-foot region of the sole structure).

Regarding **claim 20**, the modified sole structure of Connell (i.e., Connell as discussed with respect to claim 11 above) further teaches *wherein the first bladder and the second bladder each include a tensile member* (See Connell, Fig. 57A; chambers (190k, 194k) are each fluid-filled chambers having tensile elements therein; [0312]).

Response to Arguments

10. Applicant's arguments, filed May 19, 2025, with respect to the rejection of the claims under 35 USC 103 in view of VanDomelen (US 2020/0205514) have been fully considered but are moot in view of the new grounds of rejection, as Applicant's arguments appear to be drawn only to the newly amended limitations and previously presented rejections. The new grounds of rejection are based on further consideration of Connell and the various embodiments disclosed within the substantial disclosure.

11. Regarding Applicant's argument that Connell does not disclose or suggest a compressible midsole layer that itself includes sockets, and that Connell's sockets are instead formed in plate members, not a compressible midsole, Examiner respectfully disagrees. As discussed in the rejection above, the modified midsole layer of Connell (i.e., first cushion ($152k_2$, $154k_2$) and plate (270)) are modified to be molded together to form a complete, unitary midsole layer structure as taught by another embodiment of Connell. This unitary midsole layer structure of the modified sole structure of Connell would include the plate and therefore the sockets. Furthermore, the plate (270) is disclosed as being formed from a semi-rigid or relatively rigid material (i.e., not completely rigid) which would have at least some compressibility. Therefore, the modified sole structure of Connell as discussed above teaches the continuously extending compressible midsole layer having the sockets as required by the claims. Examiner notes that the claims do not currently require that the first compressible midsole layer be a unitary piece made entirely from the same or a uniform material.

Conclusion

12. The prior art made of record and not relied upon is considered pertinent to Applicant's disclosure. US 2014/0245640 to Heard; US 2014/0026441 to Stauffer; and US 2013/0139410 are each directed to sole structures wherein materials having different rigidities are molded together to form a single structure.

13. Any inquiry concerning this communication or earlier communications from the examiner should be directed to MATTHEW R MARCHEWKA whose telephone number is (571) 272-4038. The examiner can normally be reached M-F: 9:00AM-5:00PM EST.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, CLINTON T OSTRUP can be reached at (571) 272-5559. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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/MATTHEW R MARCHEWKA/
Examiner, Art Unit 3732